

BY-LAW NO. 5208Being a by-law to control the
Subdivision of Land

THE COUNCIL OF THE CITY OF VANCOUVER in open meeting assembled, enacts as follows:

1.0 Short Title

1.1 This By-law may be cited as the "Subdivision By-law."

2.0 Definitions

2.1 In this By-law, unless the context otherwise requires, the words and expressions noted below shall mean as follows, except that any word or expression not defined in this section but defined in the Land Registry Act shall have the meaning there defined, or if not defined in the Land Registry Act but used in the Vancouver Charter, shall have the same meaning as in the Vancouver Charter:

- (a) "Street" includes a public road, highway, bridge, viaduct, lane, sidewalk, and any other way normally open to the use of the public, but does not include a private right-of-way on private property.
- (b) "Lane" means in the case of District Lot 185 any street of 33 feet (10.058 m) or less in width, and in all other cases any street less than 33 feet (10.058 m) in width.
- (c) "Local street" means a street, but does not include a lane, which is designed or used principally to provide travel and access to the parcels in the area being subdivided.
- (d) "Collector street" means a street which collects traffic from local streets or lanes and distributes it to a major street or arterial street system.
- (e) "Major street" means a street which forms, or is designed to form, part of the arterial street system of the City with a significant portion of its vehicular traffic both originating and terminating outside the area being subdivided.

3.0 Approving Officer

3.1 For the purposes of the Land Registry Act and this By-law, there shall be an Approving Officer, who shall be the Director of Planning, and a Deputy Approving Officer, who shall be a person designated by Council.

4.0 General Provisions

4.1 No land shall be subdivided within the City of Vancouver for the purpose of conveying the parcels so created or for their registration unless and until the subdivision has been approved by the Approving Officer.

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- 4.2 An application to subdivide shall be in the form prescribed by Section 6.0 and may be preceded by a Preliminary Proposal in the form prescribed by Section 5.0.
- 4.3 The Approving Officer shall not consider approving an application for subdivision unless and until all requirements of this By-law have been observed.
- 4.4. The Approving Officer may request further information from an applicant at any time, including satisfactory evidence that notification has been carried out in compliance with Section 7.0 and that the other provisions of this By-law have been complied with.

5.0 Preliminary Proposal

- 5.1 An application to subdivide land in the form of a preliminary proposal may be submitted by an owner of the land or his authorized agent to the Director of Planning and shall:
 - (a) be accompanied by a non-refundable fee of \$25.00 plus \$10.00 for each parcel proposed to be created;
 - (b) identify by full legal description every parcel proposed to be subdivided;
 - (c) contain a sketch plan, which need not be prepared by a Land Surveyor, showing approximate dimensions of every parcel proposed to be subdivided, every new parcel proposed to be created, streets and lanes, both existing and proposed, and the approximate position of any existing buildings on the land;
 - (d) state the proposed method of subdivision;
 - (e) state the use for which the subdivision is intended; and
 - (f) identify any building proposed to be retained after subdivision.
- 5.2 The Approving Officer may either accept or reject the preliminary proposal and shall advise the applicant in writing of his decision, including reasons where he rejects the proposal.
- 5.3 Acceptance of a preliminary proposal shall be valid for no more than one hundred and twenty (120) days from the date of acceptance, and thereafter a new application pursuant to subsection 5.1 shall be required.
- 5.4 Acceptance of a preliminary proposal shall not be construed as approval of an application for subdivision approval made pursuant to Section 6.0, and acceptance or rejection of a preliminary proposal may be revoked by the Approving Officer at any time.

6.0 Application for Approval of a Subdivision

6.1 An application for approval shall be in writing addressed to the Approving Officer, shall be made by the registered owner of the land or by an agent authorized by the owner to act on his behalf, and shall, unless a Preliminary Proposal pursuant to Section 5.0 has been accepted and remains valid:

- (a) be accompanied by a nonrefundable fee of \$25.00 plus \$10.00 for each parcel proposed to be created;
- (b) identify by full legal description every parcel proposed to be subdivided;
- (c) state the proposed method of subdivision;
- (d) state the use for which the subdivision is intended; and
- (e) state whether any existing buildings are proposed to be retained after subdivision.

6.2 Except for a subdivision by description, every application for approval of a subdivision plan shall include the original linen, any copies required by the Land Registrar, and four (4) white paper print copies which shall be retained by the Approving Officer.

6.3 In the case of an application by an agent authorized to act on behalf of an owner, the Approving Officer may, before dealing with the application, require that he be satisfied as to the validity of the authorization.

6.4 Where the purpose of an application to subdivide is to accommodate existing buildings or uses through adjustment of parcel boundaries, or where existing buildings or uses are intended to remain on parcels being subdivided, the Approving Officer may require the applicant to produce a plan or sketch verified by a British Columbia Land Surveyor, showing the location of buildings or uses with reference to the existing or proposed parcel boundaries.

7.0 Notification

7.1 Where the Approving Officer is of the opinion that any adjoining or neighbouring lands may be detrimentally affected by a proposal for subdivision, he may require the applicant to furnish evidence to satisfy him that the owners of such adjoining or neighbouring lands have been notified by the applicant and are aware of his proposal and either agree or disagree with the proposal, including reasons.

7.2 The Approving Officer may notify any owner of land or other person where he is of the opinion they may be detrimentally affected by a proposal for subdivision, and may make any enquiries he deems necessary in order to determine the probable effect of the proposal upon adjoining or neighbouring lands.

8.0 Action by Approving Officer

- 8.1 Within sixty (60) days after the date of an application for subdivision pursuant to Section 6.0, or within sixty (60) days after the receipt of further information requested by the Approving Officer, the Approving Officer shall either approve or reject the proposed subdivision.
- 8.2 When a subdivision plan is approved, the Approving Officer shall sign and date the plan and registration copies pursuant to the provisions of the Land Registry Act and shall return them to the applicant.
- 8.3 When a subdivision by description is approved, the Approving Officer shall sign and date a certificate of approval which shall be returned to the applicant.
- 8.4 Where an approved plan of subdivision or certificate of approval has not been registered within the time allowed and has therefore been revoked pursuant to the provisions of the Land Registry Act, and no more than twelve (12) months have elapsed since the date of approval, the Approving Officer may, on application in writing, reapprove the subdivision pursuant to Subsection 8.2 or 8.3.
- 8.5 Where an approved plan of subdivision or certificate of approval has not been registered and more than twelve (12) months have elapsed since the date of approval, the subdivision shall not be reapproved and a new application shall be required.
- 8.6 No approval shall remain valid beyond the 31st day of December of the same year unless all taxes and charges levied against the lands to be subdivided have been paid.
- 8.7 If the Approving Officer rejects an application for subdivision, he shall advise the applicant in writing stating the reasons for his refusal and shall return the plan or document submitted together with all copies except for two (2) paper print copies.
- 8.8 If an application for subdivision has not been approved within the time prescribed in Section 8.1, approval of the subdivision shall be deemed to have been refused.

9.0 Minimum Standards

- 9.1 No land shall be subdivided into parcels and no parcel shall be created having a lesser width, as measured at the required building line, or lesser area than the minimum prescribed in Table 1 of Schedule A.

- 9.2 Where the already established lawful development in the immediate vicinity occurs on parcels having a lesser width or lesser area than the minimum prescribed in Table 1 of Schedule A, and where the Approving Officer is satisfied that a reasonable standard of accommodation can be provided on a parcel of similar dimensions having regard to its proposed development and use, he may approve a subdivision which creates parcels having a lesser width or lesser area than the minimum prescribed in Table 1 of Schedule A, except that no parcel so created shall have a lesser width, as measured at the required building line, or lesser area than the minimum prescribed in Table 2 of Schedule A.
- 9.3 No parcel shall be created which does not have a minimum of 25 feet (7.620m) abutting onto a street not being a lane, except for the following:
- (a) If the land being subdivided is owned by the Crown, the Approving Officer may, after consultation with the Director of Legal Services and City Engineer, approve a subdivision which creates a parcel or parcels which do not abut a public street provided he is satisfied that Crown lands sufficient to provide the required public streets will be conveyed or dedicated to the City within a reasonable time following approval of the subdivision;
 - (b) that land referred to in By-law No. 4526.
- 9.4 The Approving Officer may refuse to approve a subdivision where any parcel is proposed with any of the following configurations, although it otherwise complies with the minimum standards prescribed above, and where he is of the opinion that a more satisfactory subdivision is possible:
- (a) The parcel has only three boundaries;
 - (b) the parcel fronts on two streets and is not a corner parcel;
 - (c) the parcel is less than 90 feet (27.432 m) or more than 150 feet (45.720 m) in depth.
- 9.5 The Approving Officer may refuse to approve a subdivision where in his opinion the proposed subdivision:
- (a) is not suited to the configuration of the land being subdivided;
 - (b) is not suited to the use for which it is intended; or
 - (c) makes impracticable the future subdivision of land within the proposed subdivision or of any adjacent land.

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- 9.6 The Approving Officer shall consider the provision for on-site parking and loading facilities, including access thereto, for all parcels proposed to be created by subdivision and may refuse to approve the subdivision if, in his opinion, lane access or other accommodation is not adequate for these facilities.
- 9.7 Where existing buildings are proposed to be retained after subdivision, the Approving Officer shall consider the yards, setbacks and open space to be provided and may refer to the Zoning and Development By-law and any advice from the City Building Inspector, and may refuse to approve the subdivision if, in his opinion, the yards, setbacks or open space are inadequate or do not comply with the By-law.
- 9.8 Where existing buildings are proposed to be retained after subdivision, the Approving Officer shall consider the existing services and the provision made to provide each building with independent connections of all services and utilities as are or would normally be available to the parcels resulting from subdivision, and may refuse to approve the subdivision if, in his opinion, adequate provision has not been made for those services and utilities.

10.0 Streets and Lanes

- 10.1 In examining any proposed plan of subdivision the Approving Officer shall consider the location and design of the proposed street and lane system and shall determine its suitability and adequacy with respect to the anticipated traffic and utility requirements within the area being subdivided, the street system already established in adjoining subdivided areas, and the general street pattern of the City. Without limiting the generality of the foregoing, the Approving Officer shall be guided by any recommendations of the City Engineer and by the basic standards set forth in Schedule B, and may refuse to approve a subdivision if, in his opinion, the proposed street or lane system is unsuitable or insufficient.
- 10.2 Where the Approving Officer, after consultation with the City Engineer, is of the opinion that a dedicated street or lane which exists along the boundary of the area being subdivided is of insufficient width, he may require that an equitable proportion of the difference between the present width of such street or lane and a width that he considers satisfactory be dedicated for street or lane purposes.
- 10.3 Where the Approving Officer is of the opinion that the remaining half of a proposed street or lane which is required along the boundary of any area being subdivided can be acquired by the City as a condition of approval of the subdivision of the adjoining property, he may approve a subdivision which creates the new street or lane at one-half its normal width.

- 10.4 All new parcels shall be provided with secondary access by means of a lane, except that where the Approving Officer is satisfied that the parcel size is sufficient to accommodate necessary vehicular access and an adequate on-site turning area or that alternate provision has been made for such turning area and the City Engineer is satisfied that adequate provision for municipal and utility services, ordinarily supplied to such parcel, had been made, the Approving Officer may approve the subdivision without requiring a lane to serve the new parcel.
- 10.5 Where a proposed subdivision creates a new street or lane or portion thereof, as a condition precedent to the approval of the subdivision the applicant shall, at no cost to the City, remove or make arrangements to the satisfaction of the City Engineer and Director of Legal Services for the ultimate removal of structures encroaching upon the street or lane or obstructions of any kind to the free and uninterrupted use by the public of the full width and extent of the street or lane.
- 10.6 Where, by reason of the creation of any subdivision, the necessity arises for public street access across a railway right-of-way, the Approving Officer may require the owner to furnish, or cause to be furnished at the expense of the owner, an order of the Board of Transport Commissioners approving of such street crossing of the railway right-of-way, and may require surfacing of the crossing and such other provisions as he deems necessary before he approves the subdivision.
- 10.7 An applicant for approval of a subdivision plan shall, unless excepted by the City Engineer, as a condition precedent to the approval of the plan enter into an agreement with the City that will ensure without cost to the City, the clearing, grading, draining and surfacing in accordance with Schedule C of all streets and lanes shown upon the plan.
- 10.8 Where cuts or fills are necessary to bring any new street or lane to a grade which, in the opinion of the City Engineer will be later established with respect thereto, an applicant for approval of a subdivision plan shall, unless excepted by the City Engineer, be required to make proper provision to support the new street or lane, or any lands adjoining them at that grade.

Such provision may include the execution of a written agreement, satisfactory to the Director of Legal Services and registrable at the applicant's expense as a charge against the lands adjoining or affected by the cuts or fills whereby the City is granted the right, liberty and easement to construct and keep maintained at all times adequate support for the street, lane or adjoining lands at the established grade, or in the alternative to cause the same to be constructed and kept maintained at the expense of the owner. Adequate support for the street, lane or adjoining lands may include the following:

- a. in the case of fills, the deposit or placing of an embankment consisting of earth, rock, gravel or some other suitable form;
- b. in the case of cuts, alteration of the contour of the adjoining lands to provide a slope from the boundary of the street or lane and extending over the adjoining lands to the extent necessary to prevent soil or other material from falling on or obstructing the street or lane;

- c. in either case, retaining walls constructed either on the adjoining lands or in the street or lane to the satisfaction of the City Engineer.

10.9 No application for approval of a subdivision pursuant to Section 6.0 shall be made unless and until Subsections 10.7 and 10.8 have been complied with.

11.0 Other Works and Services

11.1 All work required to be done hereunder in connection with the subdivision of any lands shall be carried out at the sole expense of the owner of such lands and to the satisfaction of the City Engineer before approval of the subdivision, except that where there is execution of a written agreement between the owner and the City, satisfactory to the City Engineer and the Director of Legal Services and registrable as a charge against the adjoining lands, providing for the due performance of such work at a date subsequent to approval of the subdivision, the Approving Officer may approve of the subdivision prior to the completion of such work.

11.2 An applicant for approval of a subdivision shall, unless excepted by the City Engineer, as a condition precedent to the approval and to serve the parcels, enter into an agreement with the City that will:

- a) ensure the installation and connection, at no cost to the City, of a water distribution system, a sanitary sewage collection system and a storm water collection system, or a combined collection system, in accordance with the standards set out in Schedules D and E of this By-law and in the Water Works By-law, and of a capacity or size satisfactory to the City Engineer, and all such distribution and collection systems shall become and be the property of the City of Vancouver except that in areas where, in the opinion of the Approving Officer after consultation with the City Engineer, it is impractical to install a sewerage system, the applicant may, in lieu of the aforementioned agreement, enter into an agreement to provide a satisfactory alternative at no cost to the City; and
- b) ensure that all costs for improvements to the existing City water distribution, sewage and drainage collection systems which lie outside of the subdivision boundaries but are deemed necessary by the City Engineer to supply or serve the subdivision, shall be borne by the applicant.

11.3 Where a subdivision involves adjustment of the boundaries of existing parcels, no application for approval of a subdivision pursuant to Section 6.0 shall be made unless and until the City Engineer is satisfied that adequate arrangements have been made by the owner to provide for any alteration, enlargement or extension of the City sewer or water system which may be required thereby.

- 11.4 Where sanitary sewers are not available to serve every parcel being created by a proposed subdivision, no application for approval of a subdivision pursuant to Section 6.0 shall be made unless and until the City Engineer and the Medical Health Officer are satisfied that adequate arrangements have been made by the owner to provide for the proper disposal of any sewage or industrial waste which may result from the anticipated use of the parcels.
- 11.5 Where a subdivision involves land which is wet or subject to flooding, no application for approval of a subdivision pursuant to Section 6.0 shall be made unless and until the City Engineer is satisfied that adequate arrangements have been made by the owner to drain the land or otherwise remedy the wet or flooded condition.
- 11.6 Where, in the opinion of the Approving Officer, a right-of-way or easement for any sewer or other public utility or service is necessary for the economical and proper provision of such utility or service within the proposed subdivision, such right-of-way or easement in the name of the City shall be provided and registered to the satisfaction of the Director of Legal Services.
- 11.7 Subject to Section 11.8 and 11.9 hereof, as a condition precedent to the approval of any subdivision the applicant shall enter into an agreement with the City that will ensure that all power, telephone and other wire or cable within the subdivision shall be installed underground at no cost to the City.
- 11.8 The City Council may waive the requirements of Section 11.7 with respect to any particular wire or cable or to all wires or cables within a subdivision if the Council deems that the applicant would be put to an unreasonable expense in placing such wires or cables underground.
- 11.9 The City Council hereby waives the requirements of Section 11.7 in the following specific cases due to the unreasonable expense to which the applicant would be put in order to comply therewith:
- (a) subdivisions where the lots created thereby can be served directly from existing pole lines on abutting streets or lanes and where no wiring is required within the subdivision to bring such wires and cables to the lots thereby created;
 - (b) subdivisions where the lots created are for industrial uses, where the local requirements for such cable and wire services and utilities cannot be determined and where easements for poles to carry such wires and cables can be provided at the rear of the lots created.

12.0 Public Land Conveyance

- 12.1 The subdivision of a parcel of land exceeding 20 acres (8.094 ha) shall be subject to the following conditions:
- 12.1.1. There shall be conveyed to the City, without compensation, a portion of the land, not exceeding 10 percent of the land in the subdivision, for park or recreational purposes other than streets.

- 12.1.2 The size, dimensions, and location of the portion of the land to be conveyed to the City shall be determined by the Approving Officer.
- 12.1.3 The Council, in its discretion, may accept in lieu of the conveyance to the City of the lands to which it is entitled hereunder, or any portion thereof, the payment of a sum of money equivalent to the actual value of such land or portion thereof immediately prior to the subdivision.
- 12.1.4 The conveyance to the City of the lands to which it is entitled hereunder shall contain a provision that such lands may be sold, leased, or otherwise alienated by the Council after the expiration of three years from the date of the conveyance.
- 12.1.5 A further subdivision of the lands included in a subdivision, a portion of which has been conveyed to the City for the purposes aforesaid, shall not be subject to the provisions of section 12.0.
- 12.1.6 Notwithstanding subsection 12.1.5, where a parcel of land exceeding 20 acres (8.094 ha) is to be subdivided in stages, the City may enter into an agreement with the owner of the land which includes provision for the following:
 - (a) that a proportionate part of the land to be conveyed to the City for park or recreational purposes pursuant to Subsection 12.1.1 shall be conveyed to the City at each stage of subdivision as agreed to between the City and the owner; and
 - (b) such other terms and conditions as the parties may agree and as are not inconsistent with this section.
- 12.1.7 All moneys received by the City pursuant to the provisions of Subsections 12.1.3 and 12.1.4 shall be held in trust and used only for the purpose of providing public park or recreational facilities.

13.0 Schedules

13.1 The following schedules are attached to and form part of this By-law:

- Schedule A - Standards for minimum parcel size and configurations.
- Schedule B - Standards for street configurations
- Schedule C - Standards for street construction and maintenance.
- Schedule D - Standards for water distribution systems.
- Schedule E - Standards for sanitary sewage, storm water collection and combined sewage collection systems.

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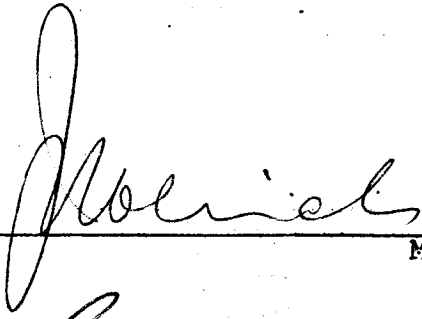
14.0 Repeal

14.1 By-law 3334, as amended is hereby repealed.

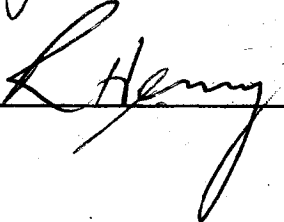
15.0 Effective Date

15.1 This By-law shall come into force and take effect on and after the date of the final passing hereof.

DONE AND PASSED in open Council this 31st day
of October, 1978.



Mayor



City Clerk

STANDARDS FOR MINIMUM PARCEL SIZE AND CONFIGURATION

Table 1

District		Minimum Parcel Width	Minimum Parcel Area
RA-1	Limited Agricultural	100' [30.480 m]	2 1/4 acres [.910 ha]
RS-1	One Family Dwelling	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
RS-1A	One Family Dwelling	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
RS-2	One Family Dwelling	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
RS-4	One Family Dwelling	85' [25.908 m]	9500 sq.ft. [882.579 m ²]
RT-1	Two Family Dwelling	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
RT-1A	Two Family Dwelling	30' [9.144 m]	3300 sq.ft. [306.580 m ²]
RT-2	Two Family Dwelling	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
RT-2A	Two Family Dwelling	30' [9.144 m]	3300 sq.ft. [306.580 m ²]
RT-3	Two Family Dwelling	25' [7.620 m]	3300 sq.ft. [306.580 m ²]
RM-1	Multiple Dwelling	60' [18.288 m]	7200 sq.ft. [668.902 m ²]
RM-2	Multiple Dwelling	50' [15.240 m]	6000 sq.ft. [557.418 m ²]
RM-3	Multiple Dwelling	50' [15.240 m]	6000 sq.ft. [557.418 m ²]
RM-3A	Multiple Dwelling	50' [15.240 m]	6000 sq.ft. [557.418 m ²]
RM-3A1	Multiple Dwelling	50' [15.240 m]	6000 sq.ft. [557.418 m ²]
RM-3B	Multiple Dwelling	50' [15.240 m]	6000 sq.ft. [557.418 m ²]
RM-4	Multiple Dwelling	50' [15.240 m]	6000 sq.ft. [557.418 m ²]
FM-1	Fairview Multiple Dwelling	50' [15.240 m]	5500 sq.ft. [510.967 m ²]
C-1	Local Commercial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
C-2	Suburban Commercial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
C-2B	Suburban Commercial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
C-2C	Commercial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
C-2C1	Commercial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
C-3A	Commercial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
M-1	Light Industrial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
M-1A	Light Industrial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]
M-2	Heavy Industrial	40' [12.192 m]	4800 sq.ft. [445.935 m ²]

Table 2

District		Minimum Parcel Width	Minimum Parcel Area
RS-1	One Family Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RS-1A	One Family Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RS-2	One Family Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RS-4	One Family Dwelling	75' [22.860 m]	8500 sq.ft. [789.676 m ²]
RT-1	Two Family Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RT-2	Two Family Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RT-3	Two Family Dwelling	25' [7.620 m]	2800 sq.ft. [260.129 m ²]
RM-1	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RM-2	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RM-3	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RM-3A	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RM-3A1	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RM-3B	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
RM-4	Multiple Dwelling	30' [9.144 m]	3000 sq.ft. [278.709 m ²]
C-1	Local Commercial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
C-2	Suburban Commercial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
C-2B	Suburban Commercial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
C-2C	Commercial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
C-2C1	Commercial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
C-3A	Commercial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
M-1	Light Industrial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
M-1A	Light Industrial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
M-2	Heavy Industrial	25' [7.260 m]	3000 sq.ft. [278.709 m ²]
FM-1	Fairview Multiple Dwelling	25' [7.260 m]	2750 sq.ft. [255.483 m ²]

Note to Tables - The minimum parcel areas and widths set out in these tables may not be sufficient to permit certain developments and reference should therefore be made to the Zoning and Development By-law.

Schedule BStandards for Street Configurations

1. Major streets are wherever possible to be continued through the area being subdivided, without jogs, at a width deemed appropriate by the Approving Officer for the particular street involved.
2. Local streets shall conform in alignment, where practicable, to existing adjacent streets and shall have a width deemed sufficient by the Approving Officer for the particular area.
3. Jogs in local street alignment are to be avoided, unless the distance between centre lines at the jog is 100 feet [30.480 m] or more.
4. Where bends occur in street alignment exceeding 10 degrees, the angle shall be replaced by a curve with a minimum centre line radius of 200 feet [60.960 m].
5. Reversed curves in street alignment shall be separated by tangents if the Approving Officer so directs.
6. Streets are to be laid out with due regard to the topography so as to avoid flat or excessive grades.
7. Intersecting streets must meet at right angles or in close approximation thereto, unless the Approving Officer otherwise requires or permits. No streets shall intersect at an angle of less than 30 degrees.
8. Corner cut-offs may be required at acute angled intersections of streets and lanes.
9. Cul-de-sacs, or dead-end streets, shall have an ample turn-around area at the closed end thereof, with proper facilities for street drainage. Unless otherwise approved by the City Engineer, any such cul-de-sacs shall be not less than 40 feet [12.192 m] width, and no more than 400 feet [121.920 m] in length.
10. Lanes shall be 20 feet [6.096 m] in width and shall, except with respect to any turn-around area aforesaid, be free from curves along their boundaries.
11. At right angle bends in a lane, triangular corner cut-offs, measuring not less than 10 feet [3.048 m] each way from the corner, may be required by the Approving Officer.
12. Acute angled intersections of lane with streets shall in general be avoided but due consideration shall be given to the continuity of lanes from block to block, in order to facilitate pole-line and other utility construction.
13. In determining block lengths, regard shall be had to access facilities for fire fighting and for other public and private utilities and services, as well as the need for facilitating vehicular and pedestrian traffic.

SCHEDULE CSTANDARDS FOR CLEARING, GRADING,
DRAINING AND SURFACING STREETS1.0 CLEARING AND GRADING

- 1.1 The entire area of all streets shall be cleared, stumped, and grubbed and all waste material removed and disposed of, except that the City Engineer may allow specific trees and/or plants to remain.
- 1.2 The entire area of all streets shall be brought to the designed grades and shapes. All unsuitable native material shall be removed and replaced or otherwise dealt with according to good engineering practice. All boulders shall be removed or cut down to give at least two feet clearance below subgrade in areas to be surfaced and at least one foot below grade in the balance of the street allowance.

2.0 DRAINAGE

- 2.1 The surface drainage from all pavements shall be carried through catch basins to a storm sewer or combined sewer system.
- 2.2 Ground water shall be intercepted and collected as necessary to prevent it reaching the subgrade or flowing over the sidewalks and pavements and shall be carried through catch basins to the storm sewer or combined sewer system.
- 2.3 Ditches in lanes shall be connected through catch basins to the storm sewer or combined sewer system.
- 2.4 Any natural watercourse which crosses or enters any street allowance shall either be carried across the street allowance in a permanent culvert or be intercepted before it reaches the street and carried to the storm sewer or combined sewer system.
- 2.5 The hydraulic and structural design, details and construction of such culverts shall be to the satisfaction of the City Engineer. Where any such culverts enter or leave the streets they shall be provided with headwalls or other suitable provision made so that the entire area of the street can be brought to the design as required in Section 10 of this schedule.

3.0 SURFACING3.1 Sidewalks3.1.1 Scope

Permanent sidewalks shall be installed on each side of all streets except lanes, provided that the City Engineer may waive the requirement of any sidewalk if, in his opinion, special features of the subdivision make it unnecessary.

3.1.2 Material and Construction

Sidewalks shall be of Portland Cement concrete which conforms to the current specifications of the City Engineer and laid in one course. The surface shall have a broomed finish and on grades over 14 percent corrugations shall be added for one-half of the width.

3.1.3 Width and Thickness

The width of sidewalks shall be:

- a Walks serving only one or two family dwelling property - 5 feet
- b Walks serving multiple dwelling property - 6½ feet
- c Walks serving commercial property - 8½ feet
- d Walks serving industrial property - 6½ feet

The thickness of sidewalks shall be in accordance with the current specifications of the City Engineer.

3.2 Gravelled Lanes

3.2.1 Scope

Lanes which will serve only one or two family dwelling property shall have a gravelled roadway with side ditches, provided that any lane with a grade over 14% or any lane with a length greater than 700 feet between accesses to streets other than lanes shall be paved as prescribed in subsection 3.3.

3.2.2 Material, Width and Thickness

Gravelled lanes shall be surfaced 16 feet wide with 6 inches of compacted crushed gravel.

3.3 Paved Lanes

3.3.1 Scope

All lanes which will serve multiple dwelling, commercial or industrial property and lanes serving one or two family dwelling property which have a grade over 14% or a length greater than 700 feet between accesses to streets other than lanes shall be paved.

3.3.2 Material and Construction

Lane paving shall be of either asphaltic concrete or Portland cement concrete, laid with a centre valley gutter.

3.3.3 Width and Thickness

- (a) Lane paving serving only one or two family dwelling property shall be 16 feet wide. If of asphaltic concrete it shall be 2½ inches thick laid on 4 inches of compacted crushed gravel and if of Portland cement concrete it shall be 4½ inches thick.
- (b) Lane paving serving any multiple dwelling, commercial or industrial property shall be the full width of the lane allowance and 5 inches thick.

3.4 Paved Streets Other Than Lanes

3.4.1 Scope

All streets other than lanes shall have curbed pavements.

3.4.2 Curbs

Curbs shall be of Portland cement concrete, integral with either a Portland cement concrete gutter or a Portland cement concrete pavement. Curb dimensions shall conform to the current specifications of the City Engineer.

3.4.3 Strength Classes

- (a) Light - Where a light class of pavement is required it shall be one of the following:
- 5 inches of asphaltic concrete, or
 - 4½ inches of Portland cement concrete.
- (b) Intermediate - Where an intermediate class of pavement is required it shall be one of the following:
- 5½ inches of asphaltic concrete, or
 - 5 inches of Portland cement concrete.
- (c) Heavy - Where a heavy class of pavement is required it shall be one of the following:
- 8 inches of asphaltic concrete, or
 - 7 inches of Portland cement concrete.

3.4.4 Required Width and Strength-Class of Paving

Subject to paragraphs 3.4.5 and 3.4.6, the width between curb faces and the strength-class of paving shall be as shown in the following table:

	Streets Other Than Lanes Serving:			
	One or Two Family Dwelling Property	Multiple Dwelling Property	Commercial Property	Industrial Property
Local Streets	27 feet light	36 feet intermediate	36 feet heavy	40 feet heavy
Collector Streets	32 feet intermediate	36 feet intermediate	42 feet heavy	46 feet heavy

3.4.5 Additional Provisions Regarding Width

The width between curb faces of paving on:

- (a) Streets abutting parks, secondary schools or churches shall be at least 36 feet.
- (b) Streets within one block or 700 feet, whichever is the lesser, of commercial or industrial property shall be at least 36 feet.
- (c) Curved streets with a centre line radius of less than 500 feet shall be greater than prescribed in Subsection 3.4.4 and in (a) and (b) of this paragraph by the amount given by the formula:

$$A = \frac{500 - R}{50} \text{ where } A \text{ is the additional width in feet and } R \text{ is the centre line radius in feet}$$

- (d) Culs-de-sac shall have a diameter of at least 76 feet.

3.4.6 Extra Width and Strength

- (a) The City Engineer may require that the width or the strength of any pavement be greater than indicated in subsections 3.4.3, 3.4.4 and 3.4.5 in his opinion, the additional width or strength is necessary because of features of the ground, the topography, or the layout of the subdivision or by the volume or weight of the traffic which it will carry.
- (b) If additional width or strength of pavements is required under (a) hereof, and if it is necessary because of traffic which has both its origin and its destination outside of the subdivision, the additional cost, as determined by the City Engineer, shall be borne by the City.

3.5 Subgrade

The surfacing required in subsections 3.1 to 3.4 inclusive shall be laid on a suitable subgrade meeting the following requirements:

- (a) The density of the subgrade, determined by ASTM-D1557 method A, shall be at least 96% for the top 12 inches and at least 90% below that.
- (b) The deflection under an 18,000 pound axle, determined by a standard Benkelman Beam test shall not be greater than 0.100 inches.

4.0 DESIGN AND SUPERVISION

- 4.1 All work done under the provisions of this schedule shall be designed and supervised by Professional Engineers experienced in the several classes of work.
- 4.2 Enough competent and experienced inspectors, instrumentmen, and engineers shall be employed in the field to ensure full compliance with the drawings and specifications.
- 4.3 The design, construction, testing, control and other related aspects of the work shall be in accordance with good current standards which for the purposes of this By-law are, in general, the related standards, specifications and practices of the City of Vancouver in effect at the time of approval of the subdivision.

5.0 APPROVAL, ACCEPTANCE, MAINTENANCE AND SURETY

- 5.1 Complete design drawings and specifications, along with such other contract documents, testing and inspection instructions, design notes and other related information as he may require, shall be submitted to the City Engineer for review. No work shall be commenced until the related drawings and specifications and any other required documents have been approved by the City Engineer.
- 5.2 The City Engineer may approve designs, specifications or materials differing from what is called for in this schedule if, in his opinion, they are at least the equivalent of those specified suitable and adequate.
- 5.3 The City Engineer shall be the final judge of the adequacy and correctness of the design and specifications and of the acceptability of the works or any part of them.

- 5.4 The applicant shall maintain the works in complete repair for a period of two years from the date of their acceptance by City Engineer, correcting any fault or damage in a manner satisfactory to the City Engineer.
- 5.5 The applicant, along with some surety company authorized to carry on business in British Columbia shall enter into a bond in a form satisfactory to the Corporation Counsel, for an amount equal to one half of the total cost of the works to be done under the provisions of this schedule as estimated by the City Engineer. This bond shall be surety for the performance of all the work of clearing, draining and surfacing streets and for all the applicant's obligations in connection therewith under this By-law or under any agreement made thereunder, including the maintenance of the works as prescribed above.

STANDARDS FOR WATER DISTRIBUTION SYSTEMS1.0 Materials

- 1.1 Watermains - shall be class 52 ductile iron pipe, double cement lined meeting American Water Works Standard C151-1976.
- 1.2 Service Pipes - sizes 20mm through 50mm shall be type K soft seamless Copper Water Tube conforming to A.S.T.M. Specifications B88.
- 1.3 Service pipes larger than 50mm shall conform to the material requirements for watermains.
- 1.4 Valves - shall be of the solid wedge or double disc type meeting AWWA Standard C500-1971, with a clockwise closing direction.
- 1.5 Fittings - shall be cast or ductile iron, cement lined, conforming to AWWA Standard C110-1977.
- 1.6 Hydrants - shall be Terminal City Iron Works model TC-1 or TC-71P with one independent 65 mm port, or City Engineer approved equal.
- 1.7 Valve Boxes, Meter Boxes, and Miscellaneous Appurtenances - shall conform to the City of Vancouver Water Works Manual, Section 407.
- 1.8 Corporation Brass - shall be Mueller model 110 compression fittings or City Engineer approved equal.

2.0 Design

- 2.1 Watermain and appurtenances shall be laid in accordance with the locations and sizes shown on a plan prepared by the City Engineer.
- 2.2 The locations of the watermains shall be within the newly created streets or on other existing streets

3.0 Construction

- 3.1 Watermains and appurtenances shall be laid in accordance with AWWA Standard C600-77.
- 3.2 Backfill shall be in accordance with the City Engineering Department Manual of Backfill Procedures, 1970.

4.0 Inspection and Acceptance

- 4.1 All materials used for the installation of the water system shall be subject to the inspection and approval of the City Engineer.
- 4.2 The City Engineer shall have the authority to enter and inspect any part of the work and to withhold acceptance.
- 4.3 The subdivider shall give ample notice to allow the City Engineer to witness disinfection and hydrostatic testing.

5.0 Records

- 5.1 The City Engineer shall receive a complete set of records of the as-constructed water system, in a form acceptable to the City Engineer.

6.0 Connection to the City's Water System

- 6.1 The connection to the City's water system will be made by City work forces, at the cost of the subdivider.
- 6.2 The connection to the City system will not be made until the City Engineer has issued a letter of acceptance of the new water system.

SCHEDULE E
STANDARDS FOR SANITARY SEWAGE
AND STORM-WATER COLLECTION SYSTEMS
OR COMBINED SEWAGE COLLECTION SYSTEMS

1.0 Design

- 1.1 Designs shall be in accordance with City of Vancouver standards and the sewage system in the subdivision shall be fully integrated with the City systems in adjoining areas.
- 1.2 Designs and plans shall be approved by the City Engineer prior to construction.

2.0 Scope of Work

- 2.1 The work shall include supply of all materials, equipment and labour for the installation of sewers, manholes, catch basins, catch basin connections and house sewer extensions to the property line, the whole to comprise a complete operating installation as shown on the plans to be supplied by the City Engineer.
- 2.2 The work shall include items which, though not shown on the plans or included in the specifications, may reasonably be inferred therefrom to be required.

3.0 Basis of Cost Sharing

- 3.1 Where the City requires the subdivider to provide larger pipes with extra capacity over that which would be required to serve only the subdivision, the City will contribute the additional cost estimated in the proportion that the gross area served by the pipe or pipes outside the subdivision bears to the gross area served by the extension of the same pipe or pipes within the subdivision.
- 3.2 The City Engineer shall determine the amount of the estimated additional cost referred to in Subsection 3.1.

4.0 Rights-of-Way

- 4.1 Where sewers are not in streets or lanes, the subdivider shall provide an easement acceptable to the City Engineer and covered by the City's standard easement agreement.

5.0 Twin Sewers

- 5.1 Twin sewers shall be installed in all new subdivisions in accordance with City of Vancouver Standards.

6.0 Inspection

- 6.1 During construction and prior to acceptance by the City as part of its sewer system, the City Engineer may, from time to time make inspections, at the developer's expense, of all completed sewers and appurtenances.
- 6.2 Any inspection may, at the City Engineer's direction, include television inspection of the inside of all sewers except building sewer extensions and catch basin connections.

7.0 Record Plans

- 7.1 Careful record shall be kept of the work as constructed and a set of record plans and profiles prepared which show clearly locations, sizes and elevations of all pipes, manholes, hubs, wyes and any other information necessary to show the exact construction of the system. Note should also be made of the type of ground encountered.
- 7.2 A complete set of tracings of such record plans and profiles and two sets of prints shall be given to the City Engineer prior to acceptance of the sewer system by the City.

8.0 Standards

- 8.1 City of Vancouver sewer standards may be obtained from the City Engineer upon request.

- 1.1 The title of the By-law has been modified slightly by the deletion of the word "Control".
- 2.1 The definition of "owner" has been deleted, as a more satisfactory definition is contained in the Land Registry Act. Similarly "resubdivision" has been deleted as it was somewhat redundant and misleading. "Minor Street" and "Principal Street" of the old By-law have, at the suggestion of the City Engineer, been replaced by the more widely used terms of "Local Street" and "Major Street", and supplemented by the new definition of "Collector Street". The definition for "lane" has been modified to include the larger existing lanes in the West End.
- 5.1 (was 6, 8 & 11) - A clear distinction has now been made between the "Preliminary Application" of Section 5.0, which need not include survey plans, and the more formal "Application for Approval of a Subdivision Plan" of Section 6.0. Section 5.1 also contains detail on what should accompany a preliminary application with the addition of "(e)" which now incorporates a provision from the Land Registry Act and requires information on intended use, and "(F)" which asks for a notation of any retained building.
- 5.2 (was 14) - This section has been clarified by specifically noting that a preliminary proposal may be rejected by the Approving Officer.
- 5.3 This new provision, which places a time limit on the validity of an acceptance of a preliminary proposal, has been added to protect prospective purchasers from relying on stale dated and therefore potentially misleading preliminary approvals. Since further site inspection and application reassessment is involved, a new application fee would be required.
- 6.1 (was 6 & 8) - The fee required for subdivisions has been increased from \$1.50 to \$10.00 for each additional parcel, although the base fee remains at \$25.00. Although this new fee now compares more favourably with application costs for subdivisions elsewhere in the Lower Mainland and is calculated on the same basis as for Strata Title applications, it does not reflect actual costs in processing an application. Analysis is currently taking place on the actual costs of processing development permit and rezoning applications, and data obtained there may assist in setting a more representative subdivision fee in the future.
- 6.2 (was 10) - The number of required copies of a surveyor's plan submitted for approval has been adjusted upward to reflect Land Registry requirements and City policy.
- 7.1 (was 42) - This section has been shortened slightly to give more flexibility to the proof of notification.
- 8.1 (was 9) - This section has been altered to be more specific about the type of application being considered.
- 8.6 (was 34) - The 60 day period for validity of an approval has been deleted as it is more comprehensively regulated by the Land Registry Act, and "other charges, levied against the land", in addition to "taxes", must be now paid before year-end.
- 9.1 (was 37) - This section has been perceptibly altered by the removal of the table of minimum lot width and site sizes to a relocated position as Table 1 of Schedule A. A more detailed discussion of changes to those standards can be found below in the comments pertaining to Schedule A.
- 9.2 (was 38) - This provision allows the Approving Officer to permit the creation of lots which are smaller in area or width than the normal standards set out in Section 9.1 in those cases where a similar pattern of undersized lots already exists in the immediate vicinity. The addition to this Section now requires the Approving Officer to be also satisfied that a reasonable standard of accommodation can be provided on lots below the standards of Section 9.1, and enables him to consider the development and use of the lots in making his appraisal.

As with Section 9.1, the table of absolute minimum standards for this discretionary reduction had been relocated as Table 2 of Schedule A, and a more detailed discussion of changes to Table 2 can be found in the comments pertaining to Schedule A.

- 9.3 (was 39) - In addition to the metric equivalent, this Section now makes reference to the one specific exception to the minimum frontage authorised by Council for a Downtown development.
- 9.4 (was 40) - This section has been rewritten to clarify the subjects and the responsibility of the Approving Officer in considering parcel configurations.
- 9.5 This is a new section which introduces certain sections which, although contained in the Vancouver Charter, are not included in the present Subdivision Control By-law. These sections enable the Approving Officer to refuse inadequately designed subdivisions.
- 9.7 (was 45) - The advice of the City Building Inspector has now been added to the considerations of the Approving Officer, to facilitate the complimentary operation of the Subdivision By-law with the Building By-law. In addition, the Approving Officer shall now have regard to the adequacy of all yards, set-backs and open space in his consideration of approval.
- 10.1 (was 24) - The present regulation requires the Approving Officer to determine the adquacy, with the advice of the City Engineer, of road systems but gives him no power to take action if such systems are found to be inadequate. This section has been augmented to cure this omission by giving him the right to refuse. In addition, the City Engineer has recommended that the utility requirements within the subdivision area also be an item of consideration here. Finally, some specific and detailed standards concerning street and lane design have now been removed to Schedule B, where they may be more easily amended or subsequently converted to precise metric figures.
- 10.2 } (was 24 J & K) - These provisions dealing with lanes were previously
- 10.3 } incorporated with the specific standards, but are important operative
- sections and have now been rewritten and assigned independent Section
- status.
- 10.4 (was 25) - This section regulating secondary access has been expanded slightly to include provision for an easement.
- 10.5 (was 17) - A provision to require obstructions to be removed without cost to the City has been added, and the section significantly rewritten.
- 10.7 } (was 15 & 16) - These Sections have been significantly rewritten to
- 10.8 } shorten and clarify the previous Sections. The component parts of
- 10.9 } the old Sections have been re-sectioned.
- 11.2 (was 54) - This Section has been clarified and augmented at the request of the City Engineer.
- 11.3 (was 49) - The addition of "water system" and a shifting of the onus to make arrangements for sewer or water onto the applicant are modifications to this Section.
- 12.1.3 (was 54A(3) - This section has been altered to read the "actual value" instead of "double the assessed value" to reflect the complimentary change made to similar provisions in the Vancouver Charter.

Schedule A - Table 1 (was 37)

This table of minimum dimensions is derived from the authority of Section 292 (1)(b) of the Vancouver charter and utilizes the same districts as those created under the provisions of the Zoning and Development By-law. However, while the Zoning By-law regulates the minimum sized parcel on which development can take place this provision in the Subdivision By-law governs the minimum sized parcel which can be created by the process of subdivision.

These provisions of the Subdivision By-law have not, however, always been kept up to date with amendments to the District Schedules of the Zoning By-law, and do not incorporate new districts created since 1973.

Therefore thirteen new Districts have been added to the Subdivision By-law. In most cases the minimum parcel areas set out in Table 1 are the same as the minimum site area prescribed by Section 4.1 of the District Schedules in the Zoning and Development By-law. The minimum parcel width assigned to each new District corresponds with the parcel area and is based on an average lot depth of 120 feet.

In the case of the RT-3 District (Strathcona), Table 1 would permit creation of a minimum sized parcel of 3,300 square feet, whereas the Zoning By-law permits development of a Two Family dwelling already existing parcel of a minimum of 2,800 square feet. In Table 2, however, the Approving Officer may relax this minimum parcel size to 2,800 square feet, and thus correspond with the Zoning By-law. Few parcels in the area presently zoned RT-3 have the potential for further subdivision, and these should be able to comply with the conditions set out in Section 9.2 with respect to relaxation of the minimum standards.

In the case of the FM-1 District (Fairview Slopes), the minimum standards selected for both Table 1 and Table 2 reflect the predominant existing pattern of lots with 50 feet and 25 foot frontages, and take into account the 10 feet normally required for lane purposes.

The two newest Districts created for the purposes of the Zoning and Development By-law also have smaller permitted minimum parcel size and width than previously controlled by the Subdivision By-law. The areas now zoned RT-1A and RT-2A were, in the main, previously zoned RS-2 and RT-2 with minimum parcel areas of 4,800 square feet and 6,000 square feet respectively. The new Zoning Schedules permit development on 3,300 square feet parcels for both new Districts and this minimum has been now transferred to this Subdivision By-law.

Schedule A - Table (was 38)

Table 2 contains the minimum parcel sizes and widths which describe the limit of the Approving Officer's authority to relax the minimum site size and width limitations of Table 1. Section 9.2 permits these relaxations only where an established pattern of lots below the normal minimums of the By-law already exists and where the Approving Officer is satisfied that reasonable accommodation can be provided on the smaller lots. He cannot, however, permit the creation of any lots smaller in area or width than the standards set out in Table 2.

Amendments to Table 2 involve some adjustments to the existing minimum standards and the addition of a number of new Districts.

The District Schedules of the Zoning and Development By-law control the minimum parcel size for development purposes. Because the Duplex and Multiple Dwelling Districts contain provision for a One Family dwelling "subject to the regulations of the RS-1 District Schedule", the 4,800 square feet minimum site area for a One Family dwelling, which is a RS-1 regulation, comes into effect in any duplex or multiple district where such reference is made, notwithstanding any other higher minimum site area regulation in that district for all other uses. In this regard, there is no conflict with the Subdivision By-law, which controls the minimum parcel size created for subdivision purposes, because it permits a relaxation to 3,600 square feet in certain situations, in the Duplex and Multiple Districts.

However, one of the other regulations of the RS-1 District Schedule is a relaxation section which allows the Director of Planning to permit development on any existing lot which is smaller than 4,800 feet. Because of the current minimum in the Subdivision By-law, a one family development may be permitted on a lot of any size feet in an RS-1 District, but only between 4,800 square feet and 3,600 square feet (except for smaller parcels created before the Subdivision By-law in 1952) in the Duplex and Multiple Dwelling Districts. Therefore it is now proposed to reduce the 3,600 square feet to 3,000 square feet so that a One Family Dwelling development would be treated consistently whatever the District. Accordingly, in the reference to the RT-1, RT-2, RM-3 and RM-4 Districts in Table 2, the minimum parcel area has been amended to 3,000 square feet. Minimum parcel widths have been correspondingly reduced to 30 feet.

One exception is the RS-4 District (Shaughnessy Heights) where the minimum parcel size for the purposes of Section 9.2 remains at 8,500 square feet, and the width at 75 feet.

The twelve additions include the three new Multiple Districts, RM-3A, RM-3A1 and RM-3B, the four new Commercial Districts, C-2B, C-2C, C-2C1, C-3A and the M-1A Industrial District and the older RM-1 and RM-2 Districts, all containing the discretionary power to create lots with a 3,000 square foot site area in the certain instances set out in Section 9.2 of the Subdivision By-law. As with the older Districts, referred to in the preceding paragraph, the 3,000 square feet represents the smallest size of parcel which can be created and used for any purpose except apartment, townhouse, boarding or rooming house or any other use listed in the District Schedules of the Zoning By-law with specified site area limitations.

The RS-1A addition has been given the same reduction privileges as RS-1, while in the new RT-3 District, the Approving Officer can create lots of a minimum site size of 2,800 square feet, equivalent to minimum site size for development set out in the equivalent District Schedule in the Zoning and Development By-law.

The addition of the FM-1 District (Fairview Slopes) to Table 2 will enable the Approving Officer to relax the minimum 50 feet Frontage standards of Table 1 in order to permit subdivision into lots with a 25 foot Frontage. This policy may encourage small scale development while at the same time ensuring a reasonable standard of accommodation. However, the process should be monitored in this District to ensure that subdivision does not frustrate the policy of preserving existing residential structures in the Fairview Slopes area.

Three District Schedules are not included in this Table of further relaxations: RA-1 (Blenheim Flats) and the RT-1A and RT-2A Schedules where the permitted minimum parcel width and size (Table 1) is already the same as the minimum relaxation dimensions for other similar Districts in Table 2.

Finally, in order to avoid any confusion with the development minimums specified in the Zoning and Development By-law, it is proposed to add a marginal note to this table, which recommends reference to that By-law.

Schedule B - (was 24, 25, 26, 27 and 28) - Street Configuration

This Schedule now incorporates the technical and specific standards previously found in the body of the By-law, together with metric equivalents. A more comprehensive metric conversion will be reported on at a later date.

Schedule C - (was Schedule C) - Minor amendments have been made to this Schedule at the request of the Engineering Department, and include a wider pavement width for certain streets. A comprehensive metric conversion is in process and will be reported on at a later date.

Schedule D - (was Schedule A) - Water Distribution System

This Schedule has been significantly rewritten, shortened and clarified by the Engineering Department.

Schedule E - (was Schedule B) - Sewage Collection System

This schedule has been amended with respect to certain specification references and has been converted to metric measurement.

Deleted Sections

The following sections have been deleted in the Subdivision By-law for the reason noted:

- 13 - Right of Approving Officer to make suggestions which cause a plan "to be in order for approval."

This section has been deleted because the authority to recommend changes is implicit elsewhere in the Approving Officer's responsibilities and duties and because this section may create certain impediments to the Approving Officer's discretion in considering the Plan of Subdivision for approval.

- 29 - Pole line easements.

The City Engineer has advised that this section is no longer utilized and has recommended its deletion.

- 30 - Refusal of subdivision if survey work not up to standard.

This section has been deleted because it is considered inappropriate to require the Approving Officer to establish the adequacy of a land survey which, in any event, is more appropriately controlled by the Survey profession itself and by the provisions of the Land Registry Act. The City Surveyor concurs in this deletion.

- 35 - Revocation of approval.

This section has been deleted because its regulations are more appropriately covered by provisions of the Land Registry Act, as recognized in proposed Section 8.4.

- 41 - Rejection if established land use values depreciated.

The use of this section by the Approving Officer has been declared inappropriate by the Courts. Accordingly, Section 41 has no longer been utilized and has therefore been deleted.

- 53 - Shaughnessy special approval.

Since the repeal of the "Shaughnessy Heights Building Restriction Act, 1922," this section has been inoperative and has therefore been deleted.

9.6 The Approving Officer shall consider the provision for on-site parking and loading facilities, including access thereto, for all parcels proposed to be created by subdivision and may refuse to approve the subdivision if, in his opinion, lane access or other accommodation is not adequate for these facilities.

9.7 Where existing buildings are proposed to be retained after subdivision, the Approving Officer shall consider the yards, setbacks and open space to be provided and may refer to the Zoning and Development By-law and any advice from the City Building Inspector, and may refuse to approve the subdivision if, in his opinion, the yards, setbacks or open space are inadequate or do not comply with the By-law.

9.8 Where existing buildings are proposed to be retained after subdivision, the Approving Officer shall consider the existing services and the provision made to provide each building with independent connections of all services and utilities as are or would normally be available to the parcels resulting from subdivision, and may refuse to approve the subdivision if, in his opinion, adequate provision has not been made for those services and utilities.

10.0 Streets and Lanes

10.1 In examining any proposed plan of subdivision the Approving Officer shall consider the location and design of the proposed street and lane system and shall determine its suitability and adequacy with respect to the anticipated traffic and utility requirements within the area being subdivided, the street system already established in adjoining subdivided areas, and the general street pattern of the City. Without limiting the generality of the foregoing, the Approving Officer shall be guided by any recommendations of the City Engineer and by the basic standards set forth in Schedule B, and may refuse to approve a subdivision if, in his opinion, the proposed street or lane system is unsuitable or insufficient.

10.2 Where the Approving Officer, after consultation with the City Engineer, is of the opinion that a dedicated street or lane which exists along the boundary of the area being subdivided is of insufficient width, he may require that an equitable proportion of the difference between the present width of such street or lane and a width that he considers satisfactory be dedicated for street or lane purposes.

10.3 Where the Approving Officer is of the opinion that the remaining half of a proposed street or lane which is required along the boundary of any area being subdivided can be acquired by the City as a condition of approval of the subdivision of the adjoining property, he may approve a subdivision which creates the new street or lane at one-half its normal width.

TABLE
OF
CONCORDANCES

<u>EXISTING SECTION</u>	<u>PROPOSED SECTION</u>
1	1.1
2	2.1
3	4.1
4	3.1
5	4.3
6	5.1 & 6.1
7	6.3
8	5.1 & 6.1
9	8.1 & 4.4
10	6.2
11	5.1
12	5.2
13	Deleted
14	5.4
15	10.7
16	10.8
17	10.5
18	11.7
19	11.8
20	11.9
21	11.1
22	10.6
23	10.6
24	10.1, 10.2 & 10.3, Schedule D
25	10.4
26	Schedule D-10
27	Schedule D-11
28	Schedule D-12
29	Deleted
30	Deleted
31	8.2
32	8.2
33	8.3
34	8.6
35	Deleted
36	8.4 and 8.5
36A	8.7 and 8.8
37	9.1 and Schedule D
38	9.2 and Schedule D
39	9.3
40	9.4
41	Deleted

EXISTING SECTION

42
43
44
45
46
47
48
49
50
51
52
53
54
54A

PROPOSED SECTION

7.1
7.2
6.4
9.7
Deleted
9.8
9.6
11.3
11.5
11.4
11.6
Deleted
11.2
12.1

Schedule A
Schedule B
Schedule C

Schedule D
Schedule E
Schedule C

TABLE
OF
CONCORDANCES

<u>PROPOSED SECTION</u>	<u>EXISTING SECTION</u>
1.1	1
2.1	2
3.1	4
4.1	3
4.2	New
4.3	5
4.4	New & 9
5.1	11, 8, 6
5.2	12
5.3	New
5.4	14
6.1	8, 6
6.2	10
6.3	7
6.4	44
7.1	42
7.2	43
8.1	9
8.2	32 & 31
8.3	33
8.4	36
8.5	36
8.6	34
8.7	36A
8.8	36A
9.1	37
9.2	38
9.3	39
9.4	40
9.5	New
9.6	48
9.7	45
9.8	47

PROPOSED SECTION

EXISTING SECTION

10.1

24

10.2

24(k)

10.3

24(j)

10.4

25

10.5

17

10.6

22 & 23

10.7

15

10.8

16

11.1

21

11.2

54

11.3

49

11.4

51

11.5

50

11.6

52

11.7

18

11.8

19

11.9

20

12.1

54A

Schedule A

37 & 38

Schedule B

1

24(a)

2

24(b)

3

24(c)

4

24(d)

5

24(e)

6

24(f)

7

24(g)

8

24(h)

9

24(i)

10

26

11

27

12

28

13

24(1)

Schedule C

Schedule C

Schedule D

Schedule A

Schedule E

Schedule B